EQUATOR RESOLUTION

Institutional Mediation, Conciliation & POSH Support

www.equatorresolution.com · An Infrabyx Group Venture

Workplace & HR Dispute Resolution

Platform Design, Legal Framework & Operating Blueprint

Resolving employment, wage, full-and-final, separation and grievance disputes — and supporting POSH compliance — fairly, confidentially and enforceably.

Document	Master Blueprint — Workplace & HR Vertical
Version / Date	Version 1.0 · July 2026
Prepared for	Equator Resolution (Infrabyx Group)
Regulatory basis	POSH Act 2013; Mediation Act 2023; the four Labour Codes (in force 21 Nov 2025); DPDP Act 2023
Classification	Strictly Confidential — Internal & Advisory
Companion assets	Forms Pack · Developer Workbook · Diagrams · Calculators · Deck · Toolkit · Prototype

Document Control & Disclaimer

This Master Blueprint is a **working draft for legal sign-off**, prepared for Equator Resolution (an Infrabyx Group venture; www.equatorresolution.com). It is **not legal advice**. All statutory references — the POSH Act, 2013, the four Labour Codes, the Mediation Act, 2023 and related rules — must be confirmed by qualified counsel and a Data Protection Officer before the platform goes live or any document is used with a real party.

> **A note on sexual-harassment (POSH) matters**
> Equator supports employers' Internal Committees (including by providing trained external members and secure case management) and facilitates the statutory conciliation under s.10 of the POSH Act at the aggrieved woman's request. It does **not** replace the Internal Committee, does not permit any monetary settlement as the basis of POSH conciliation, and does not handle criminal proceedings. Safety and the complainant's autonomy come first.

Law stated as at **July 2026**. The four Labour Codes are in force nationwide from **21 November 2025**; state rules are being notified progressively — confirm the position in the relevant State.

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This document uses Word heading styles. Open in Microsoft Word and choose “Update Field” on the entry below to generate a clickable, page-numbered contents list.

Right-click and choose “Update Field” to build the Table of Contents.

PART A

Executive Summary & Vision

1. Executive Summary

Workplace disputes — unpaid wages and full-and-final dues, contested terminations, separation and notice-period disputes, benefits, grievances, and sexual harassment — are among the most common, most sensitive and most poorly served disputes in India. Litigation and labour adjudication are slow and adversarial; the sexual-harassment framework, though robust on paper, is unevenly implemented. **Equator Resolution** offers an institutional, confidential, largely online service that mediates the disputes that are capable of settlement, supports employers' statutory obligations (especially POSH), and routes every matter to the right forum.

This Blueprint sets out the legal landscape, the platform design, the forms, the governance and commercials, global best practice, the technology layer, and the full set of ready-to-use forms.

2. The Opportunity

- **Scale.** Every establishment has employment, wage, separation and grievance disputes; POSH compliance is mandatory for organisations with 10 or more workers.
- **Pain.** Labour courts and tribunals are slow; F&F and wage disputes drag; terminations breed litigation; POSH inquiries are often mishandled for want of trained committees.
- **Regulatory push.** The four **Labour Codes are now in force (21 Nov 2025)**, consolidating 29 laws and formalising grievance-redressal machinery; the **POSH Act** mandates Internal Committees with an external member; the **Mediation Act, 2023** makes mediated settlements enforceable as decrees.
- **Employer demand.** Employers want faster, cheaper, reputation-safe resolution and reliable POSH compliance; employees want fair, dignified, prompt outcomes and a clean exit.

3. Vision

To be India's trusted institution for resolving workplace disputes — fair to employees, efficient for employers, and impeccable on the sensitive matters — delivered online, secured by escrow where money is involved, and enforceable in law.

4. How Equator Works — Workplace

Workplace Dispute Resolution — End-to-End Workflow

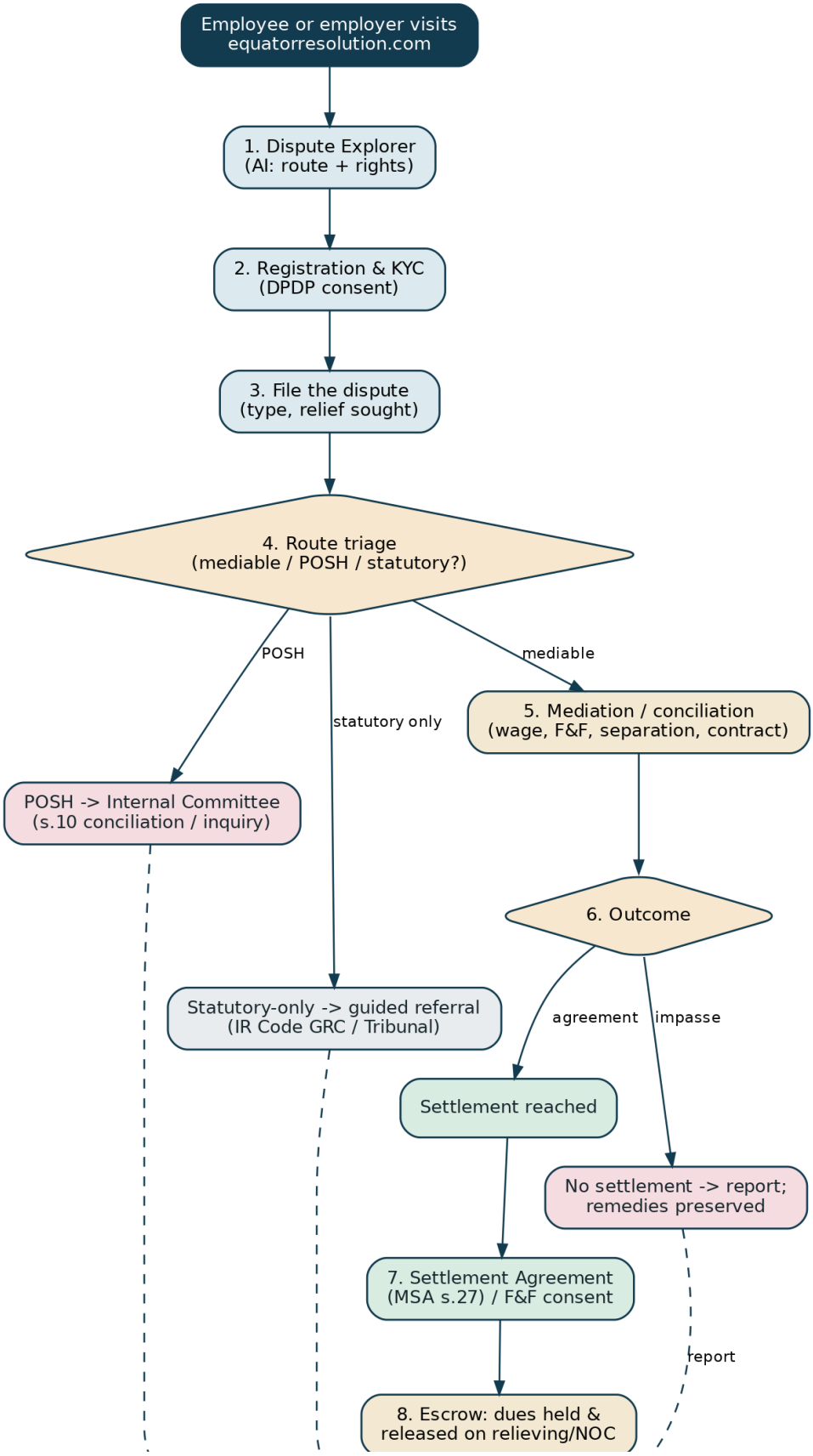


Figure 1 — the workplace dispute lifecycle, from intake to enforceable outcome.

1. **Explore.** The AI Dispute Explorer helps a party understand the route, their rights and remedies, and drafts a first grievance/complaint.
2. **Register & file.** KYC and DPDP consent; either the employee or the employer may initiate.
3. **Triage.** We classify the matter — mediable (wage/F&F/separation/contract/grievance), **POSH** (to the Internal Committee), or statutory-only (IR Code machinery) — and route accordingly.
4. **Resolve.** A conflict-checked neutral mediates; POSH matters are supported through the Internal Committee and s.10 conciliation where lawful.
5. **Settle & secure.** A settlement/F&F, e-signed and e-stamped, enforceable as a decree; money held in escrow and released against relieving and clearance.
6. **Close.** Relieving and experience letters; confidential record and audit trail.

PART B

The Legal Landscape

5. The Mediation Framework

The **Mediation Act, 2023** governs institutional mediation. A mediated settlement agreement (MSA) is **final and binding and enforceable as a judgment/decree of court (s.27)**, may be registered (s.20), and is confidential and without prejudice (s.22). Employment and workplace money/contract disputes are generally amenable to mediation. The Act's First Schedule and general law exclude certain matters; sexual-harassment complaints are dealt with under the special POSH regime, not diverted into ordinary mediation.

6. The POSH Act, 2013

The **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013** ('POSH') requires every employer with **10 or more workers** to constitute an **Internal Committee (IC)** and provides a Local Committee (LC) at the district level for smaller establishments and for complaints against the employer.

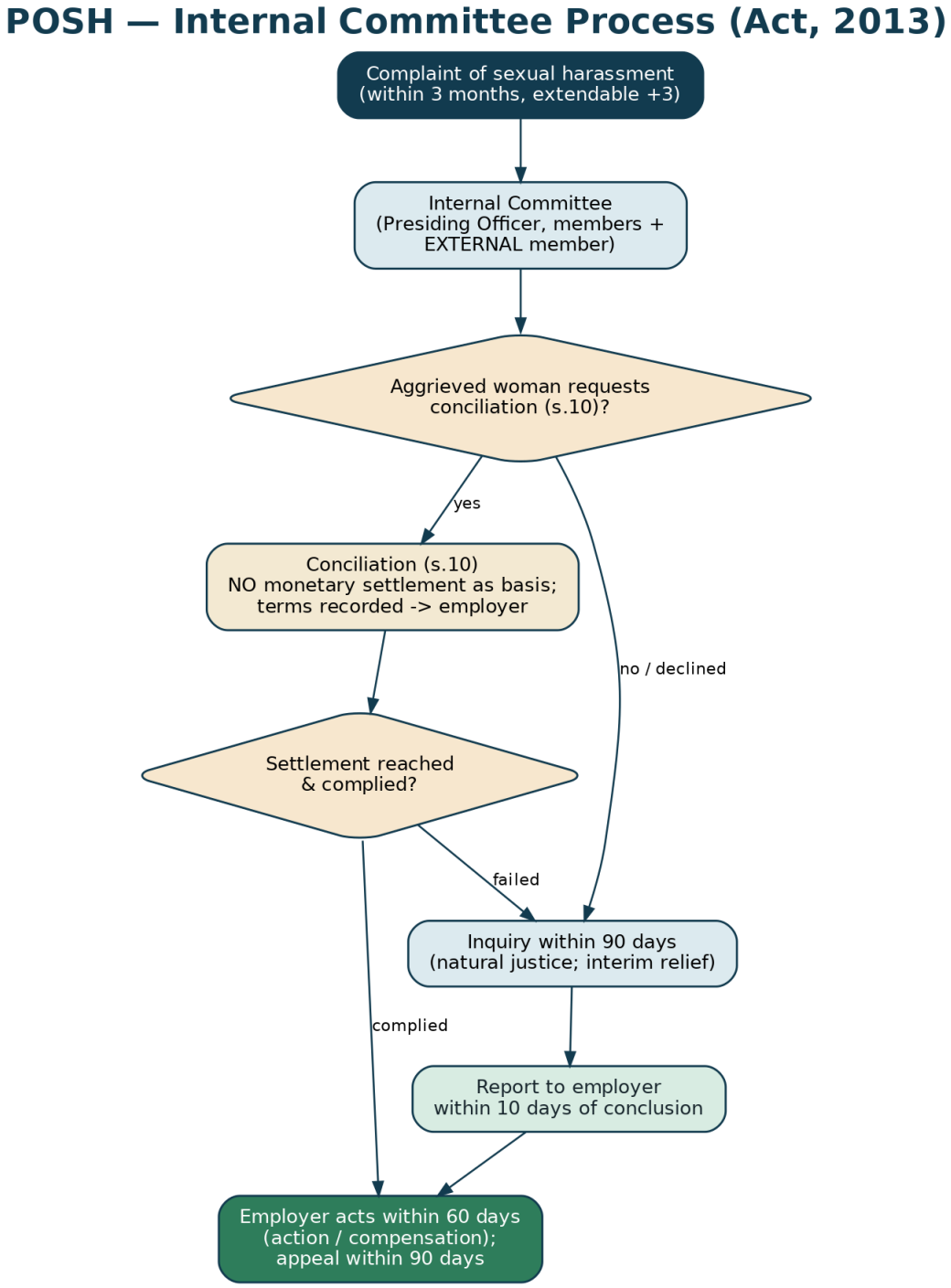


Figure 2 — the POSH Internal Committee process and timelines.

6.1 Key features

- **Composition (s.4).** A Presiding Officer (a senior woman employee), at least two members, and at least one **external member** from an NGO/association committed to the cause of women, or a person familiar with sexual-harassment issues. At least half the members must be women.
- **Complaint.** In writing, ordinarily within **3 months** of the incident (or the last incident), extendable by a further 3 months for recorded reasons; assistance is available to file.

- **Conciliation (s.10).** Before an inquiry, and **only at the aggrieved woman's request**, the IC may attempt conciliation. It **cannot** be initiated by the IC on its own or at the respondent's request, and **no monetary settlement may be the basis** of conciliation. Terms, if agreed, are recorded and sent to the employer for implementation.
- **Inquiry.** If there is no conciliation (or it fails), the IC inquires following natural justice and completes it within **90 days**; interim relief (e.g., transfer, leave, stop-contact) may be granted.
- **Report & action.** The IC reports to the employer within **10 days** of concluding the inquiry; the **employer acts within 60 days**; either party may **appeal within 90 days**.
- **Confidentiality (s.16).** The complaint, the identities and the proceedings are confidential; breach attracts a penalty.
- **Employer duties & penalties.** Policy, awareness, IC constitution, facilitation, annual report; non-compliance attracts fines and, on repetition, cancellation of licence/registration.

Equator's POSH role

Provide trained external IC members; secure, confidential case management and documentation (F-W07 to F-W10); facilitate s.10 conciliation at the woman's request; IC training. Equator never diverts a POSH complaint away from the IC, never bases conciliation on money, and never handles the criminal aspect.

7. The Labour Codes (in force from 21 November 2025)

India's 29 principal labour statutes have been consolidated into **four Labour Codes, now in force nationwide from 21 November 2025** (Central Rules notified in 2026; State rules progressively). They reshape wages, industrial relations, social security and workplace safety.

Code	Consolidates (illustrative)	Workplace-dispute relevance
Code on Wages, 2019	Payment of Wages, Minimum Wages, Payment of Bonus, Equal Remuneration	Wage/bonus/equal-pay disputes; 'wages' = basic + DA + retaining allowance, to be ≥50% of CTC (affects PF/gratuity).
Industrial Relations Code, 2020	Industrial Disputes, Trade Unions, Standing Orders	Grievance Redressal Committee; conciliation; Industrial Tribunal; termination/retrenchment; standing orders.
Code on Social Security, 2020	EPF, ESI, Gratuity, Maternity Benefit	Gratuity, PF/ESI, maternity-benefit disputes; final settlement of statutory dues.
OSH & Working Conditions Code, 2020	Factories, Contract Labour, ISMW, and others	Working-conditions, contract-labour and welfare matters.

Under the **Industrial Relations Code**, an establishment of the notified size maintains a **Grievance Redressal Committee** (with adequate representation of women workers) to resolve individual grievances; unresolved matters can become industrial disputes handled by conciliation officers and Industrial Tribunals. Equator complements this machinery and can mediate where lawful.

8. Individual Employment & Contract Disputes

- **Wage & F&F dues** — unpaid salary, arrears, leave encashment, bonus, incentives, and the full-and-final settlement on exit.
- **Termination & separation** — contested dismissal, notice period, garden leave, severance/ex-gratia, and mutual separation.
- **Contractual** — employment-bond recovery, notice-pay in lieu, non-compete and confidentiality (enforceability is limited by s.27 of the Contract Act — reasonable, post-employment restraints are generally void), moonlighting.
- **Benefits** — gratuity, PF, ESI, maternity benefit, and their correct computation and payment.
- **Gig & contract workers** — platform/contractor disputes, increasingly within social-security coverage.

9. The Mediable / Non-Mediable Boundary

Equator recognises what it can and cannot resolve by settlement.

Matter	Route	Equator's role
Wage/F&F/separation/contract/benefits	Mediation/conciliation	Primary: settle, escrow, enforceable MSA/F&F.
Individual grievance	GRC → mediation	Mediate where unresolved and both agree.
Sexual harassment (POSH)	Internal Committee	Support IC + s.10 conciliation (no money basis); never replace IC.
Collective/union/statutory industrial dispute	IR Code machinery	Signpost; mediate a settlement where lawful.
Criminal conduct / safety threat	Police / criminal law	Not mediable; signpost; ensure safety.

PART C

The Platform — Design & Workflow

10. Dispute Taxonomy & Dropdowns

The intake captures the dispute precisely so the platform can triage and the AI can assist. Core dropdowns:

Field	Options (dropdown)
Who are you?	Employee / Ex-employee / Employer / Contractor-gig / Union or representative
Dispute type	Wage/salary dues · Full & final (F&F) · Wrongful/unfair termination · Notice period/bond · Gratuity/PF/ESI/benefits · Leave/attendance · Non-compete/confidentiality · Workplace harassment (non-POSH) · Sexual harassment (POSH) · Discrimination · General grievance · Retrenchment/layoff · Contractor/gig
Establishment size	<10 · 10–49 · 50–99 · 100–299 · 300+ (affects POSH/standing-orders/GRC thresholds)
Employment status	Current · Notice period · Separated · Suspended · On leave
Relief sought	Payment of dues · Reinstatement · Relieving & experience letter · Correction of record · Notice-pay waiver · Compensation · Return of documents/assets · Apology/corrective action · Reference/clearance

11. Roles & Access

- **Parties** — employee/ex-employee, employer/HR, contractor, representative/advocate.
- **Neutral** — mediator/conciliator (HR/ER/POSH/labour expertise, graded A/B/C).
- **Internal Committee** — Presiding Officer, members, and Equator's **external member** (POSH matters only, sealed access).
- **Case manager & escrow officer** — administration, SLAs, money.
- **Confidentiality walls** — POSH and disciplinary data are sealed and access-controlled; per-party walls in every matter.

12. Onboarding & Data Protection

Onboarding (F-W01) verifies identity and records **DPDP consent**. Sensitive categories — POSH, health, disciplinary records — are flagged, masked and access-restricted. Retention follows the published schedule.

13. The Workflow

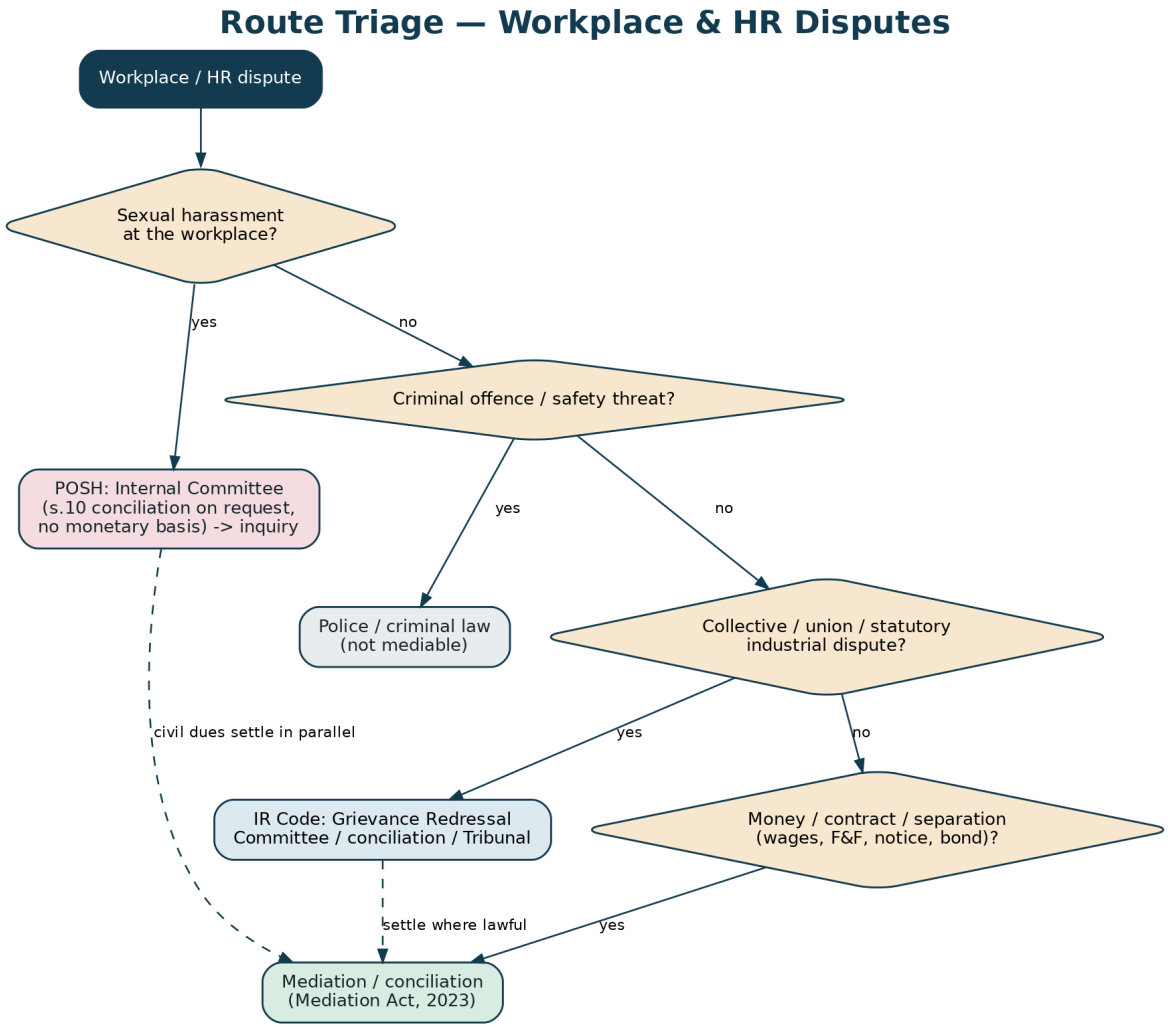


Figure 3 — route triage across POSH, statutory and mediable matters.

7. **Initiation (either party).** Employee or employer files a Request for Resolution (F-W02) or an employee files a Grievance (F-W04); POSH complaints use F-W07.
8. **Verification & triage.** KYC/consent; classify and route (mediable / POSH / statutory).
9. **Notice & response.** The other party is invited (F-W03) and responds (F-W05).
10. **Neutral / IC.** A conflict-checked neutral is appointed (F-W06); POSH matters go to the IC with Equator's external member (F-W10).
11. **Sessions.** Confidential, without-prejudice sessions (online or in person); interests over positions; women neutrals available.
12. **Settlement.** Wage/F&F (F-W11), separation/termination (F-W12), or POSH s.10 conciliation (F-W08); escrow instruction (F-W16).
13. **Closure.** Relieving/experience letters; closure report (F-W17); audit trail.

14. POSH on the Platform

For sexual-harassment matters the platform operates in a **sealed POSH mode**: only the IC (and Equator's external member and POSH-trained case support) can access the file; s.16 confidentiality is enforced technically; the s.10 conciliation path (F-W08) is available only on the aggrieved woman's request and never on a monetary basis; the inquiry record (F-W09) tracks the 90-day clock and the 10-day/60-day reporting and action timelines. The platform provides interim-relief workflows, awareness content and IC training.

15. Case-Manager Playbook & SLAs

Stage	Target SLA	Owner
Acknowledge intake	Same/next working day	Case manager
Serve notice / invite	2 working days	Case manager
Appoint neutral / convene IC	3–5 working days	Case manager
Mediation sessions	Within 2–3 weeks	Neutral
POSH inquiry (statutory)	90 days	Internal Committee
Settlement & escrow	On agreement	Neutral / escrow officer
Closure & relieving	Within 7 days of settlement	Case manager / employer

16. Settlement, Full-and-Final & Enforcement

Money settlements run through **escrow** (F-W16), released against relieving and return of assets; the F&F is computed transparently (F-W18) with the calculators; **statutory dues (gratuity/PF) are paid, not waived**. A mediated settlement/F&F is **enforceable as a decree (Mediation Act s.27)**. Relieving and experience letters and a mutual release complete a clean exit.

17. Permutations (If / Then)

If...	Then...
Employee claims unpaid wages/F&F	Mediation → escrow → F&F + relieving; statutory dues paid.
Contested termination	Mediation → separation settlement (reinstatement or compensation) enforceable as a decree.
Sexual-harassment complaint	Sealed POSH mode → IC; s.10 conciliation only on request; else 90-day inquiry.
Non-compete/bond claim by employer	Mediation, tested against s.27 Contract Act (restraints generally void).
Collective/union dispute	Signpost IR Code machinery; mediate a settlement where lawful.
Criminal/safety element	Signpost police; ensure safety; mediate only the civil/dues aspect if appropriate.

PART D

Governance, Commercials & Operations

18. Forms Register

Twenty forms (F-W01–F-W20) cover the whole journey; the full text is at Part H, and standalone copies are archived.

Ref	Form	Ref	Form
F-W01	Onboarding/KYC & consent	F-W11	Wage/F&F settlement
F-W02	Request for Resolution	F-W12	Separation/termination settlement
F-W03	Notice to other party	F-W13	Agreement to mediate & confidentiality
F-W04	Employee grievance	F-W14	Statement of claim (employment)
F-W05	Response	F-W15	GRC referral (IR Code)
F-W06	Neutral selection & disclosure	F-W16	Escrow instruction
F-W07	POSH complaint (to IC)	F-W17	Case closure report
F-W08	POSH s.10 conciliation	F-W18	Full & final statement
F-W09	IC inquiry record	F-W19	Model employment ADR clause
F-W10	External IC member appointment	F-W20	Time extension

19. Fees

Fees are modest and access-friendly: a small registration/administration fee; a neutral fee scaled to the matter; escrow handling on money settlements; concessions for individual employees and small establishments; and **employer subscriptions** for POSH external-member and IC-support services. A published tariff gives certainty.

20. Risk & Mitigations

Risk	Mitigation
Mishandling a POSH matter	Sealed mode; trained external members; strict s.10/s.16 compliance; never replace the IC.
Coercing a vulnerable employee	Neutrality; voluntariness; independent-advice opportunity; no settlement of statutory dues.
Straying into statutory adjudication	Clear triage; signpost IR Code/police; mediate only where lawful.

Data breach of sensitive HR data	DPDP controls; masking; access walls; breach runbook.
Enforceability doubts	MSA s.27; e-Sign/e-Stamp; counsel sign-off.

21. Roadmap

- **Phase 1 (M1–3):** Rules, panel, intake, forms, KYC, case management, F&F calculators.
- **Phase 2 (M3–5):** POSH sealed mode + external-member service + IC training; escrow; e-Sign/e-Stamp; pilot employers.
- **Phase 3 (M5–8):** GRC/IR-Code interface; HRMS integration; employer subscriptions.
- **Phase 4 (M8–12):** Scale; publish anonymised outcome data; multi-language.

22. KPIs

- Settlement rate; median time to settle; F&F cycle time.
- POSH: inquiry-within-90-days rate; external-member coverage; IC-training completion.
- Employee-satisfaction and employer-satisfaction scores; repeat-employer rate; escalation/complaint rate.

PART E

Global Best Practice

23. What Leading Systems Do

System	What it does	What Equator adopts
ACAS (UK)	Free conciliation for employment disputes; 'early conciliation' before a tribunal claim.	Early, low-friction conciliation; a pre-claim settlement culture.
EEOC / court-annexed mediation (US)	Voluntary mediation of discrimination/employment charges.	Neutral, confidential mediation as a first resort.
Fair Work Commission (Australia)	Conciliation of unfair-dismissal and general-protection claims.	Structured conciliation with clear timelines.
Workplace mediation practice	Interest-based mediation; restorative approaches for conduct.	Interest-based technique; restorative options for non-POSH conduct.

The through-line: **conciliate early, confidentially and fairly**, keep the parties in control of the outcome, and reserve adjudication for what truly needs it — adapted to Indian law and the special POSH regime.

PART F

Technology — AI, ODR, e-Sign & Integration

24. AI Dispute Explorer (Workplace)

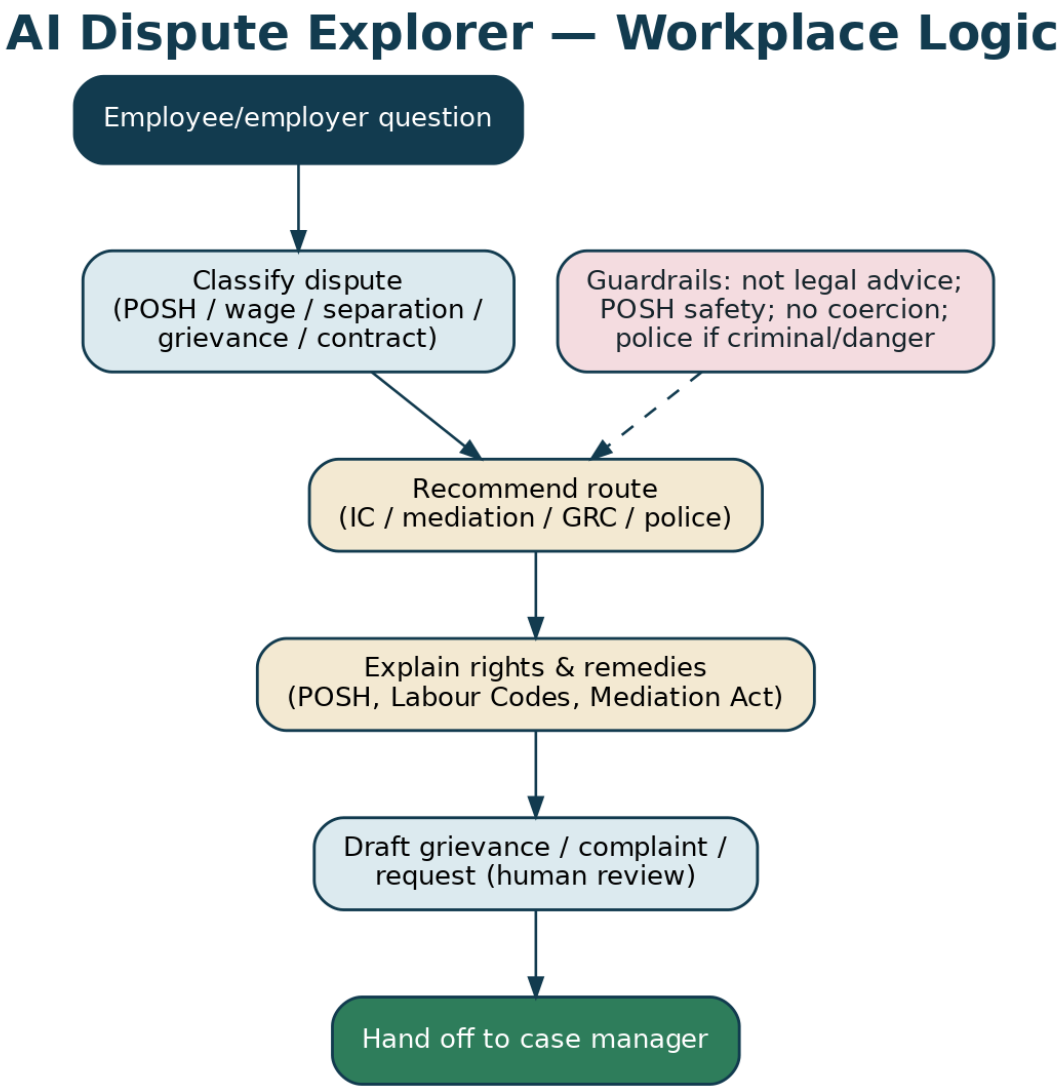


Figure 4 — the AI Dispute Explorer's workplace logic and guardrails.

The AI Dispute Explorer helps employees and employers understand the **route** (IC / mediation / GRC / police), their **rights and remedies** (POSH, the Labour Codes, the Mediation Act), and **drafts** a first grievance, POSH complaint or request for resolution for human review. It never gives legal advice, never decides, and on any safety/criminal signal it surfaces the police and safety options.

25. ODR, e-Sign & e-Stamp

The platform runs online: video sessions with private caucus; **Aadhaar e-Sign** (IT Act s.3A) for filings and settlements; **SHCIL e-stamp** on the settlement; and escrow for money. A mediated settlement is enforceable as a decree.

26. Integration

- **HRMS/payroll** — pull employment data and F&F components (with consent) for faster, accurate settlements.
- **IC case management** — a sealed module for POSH inquiries, the 90-day clock and the annual report.
- **Statutory interfaces** — signposting and handoff to the GRC, conciliation officer and Tribunal where required.

27. AI Governance & Guardrails

- No legal advice; always a not-advice disclaimer; human review of every AI draft.
- **POSH safety first** — never discourage a complaint, never suggest a monetary POSH settlement, always surface support and police-if-danger.
- No coercion; data minimisation; sensitive-data care; logging and red-teaming; disclosure that it is an AI assistant.

PART G

Annexures

28. Annexure A — Authorities (law as at July 2026)

Instrument	Relevance
POSH Act, 2013 + Rules	IC, external member, s.10 conciliation (no money basis), 90-day inquiry, s.16 confidentiality, employer duties.
Mediation Act, 2023	MSA enforceable as a decree (s.27); registration (s.20); confidentiality (s.22).
Code on Wages, 2019	Wages/bonus/equal pay; 'wages' ≥50% of CTC (in force 21 Nov 2025).
Industrial Relations Code, 2020	Grievance Redressal Committee; conciliation; Tribunal; standing orders; retrenchment (in force).
Code on Social Security, 2020	Gratuity, PF, ESI, maternity benefit (in force).
OSH & Working Conditions Code, 2020	Working conditions, contract labour, welfare (in force).
Indian Contract Act, 1872, s.27	Restraint of trade — post-employment non-competes generally void.

29. Annexure B — Glossary

IC Internal Committee (POSH) · **LC** Local Committee · **GRC** Grievance Redressal Committee (IR Code) · **F&F** full-and-final settlement · **MSA** mediated settlement agreement · **POSH** Prevention of Sexual Harassment · **CTC** cost to company · **DPDP** Digital Personal Data Protection Act, 2023.

30. Annexure C — Companion Documents

Developer Handoff Workbook; Workflow Diagrams; Forms Pack (archived); Board Deck; Calculators (F&F, gratuity, notice/severance); Neutral & IC Toolkit; Compliance & Security Workbook; Outreach (leaflet + website); the AI Dispute Explorer prototype.

31. Annexure D — Model Clauses

31.1 Employment ADR / grievance clause

Clause

"Any dispute arising out of or in connection with this employment — including wages, dues, separation, benefits or the interpretation of this contract — shall first be referred to mediation/conciliation administered by Equator Resolution under its Rules. This clause does not apply to a complaint of sexual harassment, which shall be dealt with by the Internal Committee under the POSH Act, 2013; nor does it bar a statutory forum or the police where applicable."

31.2 POSH policy reference

Clause

"The Company maintains a Prevention of Sexual Harassment policy and an Internal Committee under the POSH Act, 2013, including an external member. Complaints are dealt with confidentially by the Internal Committee; nothing in any other agreement diverts a POSH complaint from the Committee."

31.3 Full-and-final / mutual release

Clause

"The net full-and-final amount is paid in full settlement of all salary and benefit claims to the separation date, without waiver of statutory dues (gratuity/PF), against relieving, an experience letter and return of Company assets; released through escrow."

These clauses are drafting starting points; adapt and settle with counsel. POSH complaints are never diverted from the Internal Committee.

PART H

The Forms (Full Text)

This Part reproduces every Equator workplace & HR form in full (F-W01 to F-W20), ready to lift into the platform or use directly. The same set is delivered as individual documents in the archived Forms Pack folder. POSH forms (F-W07 to F-W10) support the Internal Committee's statutory role and do not replace it.

Onboarding, KYC & Data-Protection Consent

Form F-W01

Create your account, verify identity, and record DPDP consent.

A. PARTY DETAILS

Name	
Role (Employer / Employee / Ex-employee / Contractor / Union rep)	
Designation / Employee ID	
Organisation / Establishment	
PAN / Aadhaar (masked)	
Address	
Mobile	
Email	
Authorised representative / advocate (if any)	

B. ROLE

I am the:

☐ Employee / ex-employee
☐ Employer / establishment
☐ Contractor / gig worker
☐ Union / representative

C. DATA-PROTECTION NOTICE & CONSENT (DPDP Act, 2023)

Your data is processed only to administer the dispute (case management, mediation, settlement, escrow, closure) and for statutory compliance. Sensitive matters (POSH, health, disciplinary records) are kept strictly confidential and access-controlled.

DECLARATION & UNDERTAKING

☐ I give free, specific, informed and withdrawable consent to processing my data for these purposes.
☐ The information provided is true and correct.

_____

Party
Name / Signature / Date

_____

Verified by (Equator)
Name / Signature / Date

Grievance / Data Officer: grievance@equatorresolution.com. Equator acts as a Data Fiduciary under the DPDP Act, 2023. POSH complaints follow the confidentiality rules of the POSH Act, 2013.

Request for Resolution (Workplace Dispute)

Form F-W02

Commences a workplace/HR dispute. Either the employee or the employer may file.

Case No.	
Date	

1. THE DISPUTE

Dispute type(s):

- ☐ Wage / salary dues
- ☐ Wrongful / unfair termination
- ☐ Gratuity / PF / ESI / benefits
- ☐ Non-compete / confidentiality
- ☐ Sexual harassment (POSH)
- ☐ General grievance
- ☐ Contractor / gig dispute
- ☐ Full & final settlement (F&F)
- ☐ Notice period / bond dispute
- ☐ Leave / attendance
- ☐ Workplace harassment (non-POSH)
- ☐ Discrimination
- ☐ Retrenchment / layoff

Amount in dispute, if any (₹)	
Date of joining	
Date of separation (if any)	
Is there an employment/ADR clause? (Y/N)	

Brief summary of the dispute (facts, dates)

2. THE PARTIES

Name	
Role (Employer / Employee / Ex-employee / Contractor / Union rep)	
Designation / Employee ID	

Organisation / Establishment	
PAN / Aadhaar (masked)	
Address	
Mobile	
Email	
Authorised representative / advocate (if any)	

Other party (name & contact)	

3. RELIEF SOUGHT

Relief:

- ☐ Payment of dues
- ☐ Relieving & experience letter
- ☐ Notice-pay waiver
- ☐ Return of documents / assets
- ☐ Reference / clearance
- ☐ Reinstatement
- ☐ Correction of record
- ☐ Compensation
- ☐ Apology / corrective action
- ☐ Other

DECLARATION & UNDERTAKING

- ☐ I authorise Equator Resolution to administer this matter and to notify the other party.
- ☐ I understand a mediated settlement, once signed & registered, is enforceable as a decree (s.27).
- ☐ The information is true to the best of my knowledge.

_____

Applicant
Name / Signature / Date

_____

Received by (Equator)
Name / Signature / Date

If the matter is a sexual-harassment (POSH) complaint, use Form F-W07. If it is a collective/statutory industrial dispute, Equator will guide you to the correct forum (IR Code Grievance Redressal Committee / conciliation / Tribunal) and may mediate any settlement in parallel. Criminal matters are for the police.

Notice to the Other Party — Form F-W03

Issued by Equator inviting the other party to participate.

Case No.	
Date	
To	
Delivery channel	

SUBJECT: INVITATION TO RESOLVE A WORKPLACE DISPUTE

Equator Resolution has received a request to resolve a workplace/HR dispute to which you are a party. The process is voluntary, confidential and time-bound; a mediated settlement is enforceable as a decree.

Brief nature of the dispute	
Response due within	

Please file your Response (Form F-W05) within 14 days. If we do not hear from you, a non-commencement report will be issued and the applicant may pursue other remedies.

_____

Case Manager, Equator Resolution
Name / Signature / Date

Employee Grievance Form

Form F-W04

For an employee to record a workplace grievance (pay, conditions, treatment, benefits).

Employee name & ID	
Department / manager	
Date	

NATURE OF GRIEVANCE

This grievance concerns:

- ☐ Wages / dues
- ☐ Treatment / conduct
- ☐ Leave
- ☐ Other
- ☐ Working conditions
- ☐ Benefits (PF/ESI/gratuity)
- ☐ Discrimination

Describe the grievance (facts, dates)

Raised with manager/HR earlier? (date)	
Outcome so far	

RELIEF SOUGHT

What outcome do you want?

Grievances are handled confidentially. Under the Industrial Relations Code, 2020, an establishment of the notified size maintains a Grievance Redressal Committee; Equator can mediate where the matter is unresolved.

_____

Employee
Name / Signature / Date

_____

Received by (Equator)
Name / Signature / Date

Response — Form F-W05

The other party's reply.

Case No.	
Responding party	

1. PARTY DETAILS

Name	
Role (Employer / Employee / Ex-employee / Contractor / Union rep)	
Designation / Employee ID	
Organisation / Establishment	
PAN / Aadhaar (masked)	
Address	
Mobile	
Email	
Authorised representative / advocate (if any)	

2. POSITION

We:

☐ Agree to participate and settle
☐ Dispute the claim (state below)
☐ Object to jurisdiction / propose the correct forum

Response to the claim

3. COUNTER-CLAIM / SET-OFF (if any)

Details

_____

Responding party
Name / Signature / Date

_____

Received by (Equator)
Name / Signature / Date

Neutral Selection & Disclosure

Form F-W06

Appointment of the mediator/conciliator and independence disclosure.

Case No.	
Proposed neutral	
Grade (A/B/C)	
Expertise (HR/ER/POSH/labour)	

PARTY PREFERENCES

Preference:

☐ Accept the proposed neutral
☐ Request an alternative
☐ Prefer a woman neutral (esp. POSH-related)

DECLARATION BY THE NEUTRAL

DECLARATION & UNDERTAKING

☐ I am independent and impartial and have no conflict with either party.
☐ I will disclose anything that may give rise to justifiable doubts, and will keep the process confidential.
☐ I will not give legal advice or decide the dispute; I will facilitate a voluntary settlement.

_____	_____	_____
Neutral	**Party A**	**Party B**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

A party may challenge a neutral for justifiable doubts as to independence or impartiality; the Institution decides the challenge.

POSH Complaint (to the Internal Committee)

Form F-W07

A complaint of sexual harassment at the workplace under the POSH Act, 2013. Kept strictly confidential.

Complaint no. (office use)	
Date of complaint	
Establishment	

A. AGGRIEVED PERSON (kept confidential)

Name	
Designation / ID	
Department	
Contact	

B. RESPONDENT

Name	
Designation / relationship to complainant	

C. THE COMPLAINT

Please describe the incident(s) of sexual harassment: what happened, where, when, and any witnesses. Attach any supporting material. A complaint should ordinarily be made within 3 months of the incident (or the last incident); the Internal Committee may extend this by a further 3 months for recorded reasons.

Incident details (date, place, description, witnesses)

D. RELIEF / INTERIM RELIEF SOUGHT

I request:

☐ Inquiry by the Internal Committee

☐ Interim relief (e.g., transfer / leave / stop-contact)

☐ Conciliation under s.10 (my request only; no monetary settlement as a basis)

DECLARATION & UNDERTAKING

☐ The information is true to the best of my knowledge.

☐ I understand the proceedings are confidential and that I may be assisted/represented as provided under the Act.

_____

Aggrieved person
Name / Signature / Date

_____

Received by (Internal Committee / Equator support)
Name / Signature / Date

Confidentiality is protected under s.16 of the POSH Act, 2013. This platform supports the Internal Committee (including a trained EXTERNAL member) and does not replace it. If the conduct is a criminal offence or there is a threat to safety, you may also approach the police. This is not legal advice.

POSH Section 10 Conciliation — Request & Terms

Form F-W08

Records a conciliation under s.10 of the POSH Act — only at the aggrieved woman's request, and never on a monetary basis.

Complaint no.	
Date	

A. REQUEST (by the aggrieved woman only)

DECLARATION & UNDERTAKING

☐ I request conciliation under s.10 before any inquiry. This is my own request; it has not been suggested to me as a condition.

☐ I understand that no monetary settlement can be made the basis of conciliation, and that I may opt for an inquiry at any time.

B. TERMS OF SETTLEMENT (if reached)

Agreed terms (e.g., corrective action, apology, transfer, assurance of no retaliation)

C. RECORDING & IMPLEMENTATION

If a settlement is reached, the Internal Committee records the terms and forwards them to the employer for implementation, and provides copies to both parties. If the respondent does not comply, the Committee may proceed with an inquiry.

_____	_____	_____
Aggrieved person	**Respondent**	**Presiding Officer, Internal Committee**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

Section 10 conciliation cannot be initiated by the Committee on its own or at the respondent's request, and cannot be based on any monetary settlement. This form supports, and does not replace, the Internal Committee's statutory role.

Internal Committee — Inquiry Record

Form F-W09

A structured record of the POSH inquiry (notice, statements, findings) — for the Internal Committee.

Complaint no.	
Inquiry commenced on	
Target completion (90 days)	

A. NOTICE & PARTICIPATION

DECLARATION & UNDERTAKING

☐ The respondent was given a copy of the complaint and 10 working days to reply.

☐ Both parties were given an opportunity to be heard and to lead evidence (natural justice); no legal practitioner represented either party in the inquiry.

B. STATEMENTS & EVIDENCE

Summary of statements, witnesses and documents

C. FINDINGS

Finding:

☐ Allegation proved

☐ Allegation not proved

☐ Malicious/false complaint (with reasons)

Reasons for the finding

D. RECOMMENDATIONS

Action / compensation recommended to the employer

DECLARATION & UNDERTAKING

☐ The inquiry was completed within 90 days and the report is submitted to the employer within 10 days of conclusion.

☐ Confidentiality under s.16 has been maintained throughout.

_____	_____	_____
Presiding Officer	**Member**	**External Member**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

The employer must act on the recommendations within 60 days. Either party may appeal within 90 days. This template aids compliance; it is not legal advice.

External IC Member — Appointment & Undertaking

Form F-W10

Appointment of Equator's trained external member to an employer's Internal Committee (POSH s.4).

Establishment	
External member name	
Qualification / experience	

ELIGIBILITY (POSH s.4)

DECLARATION & UNDERTAKING

☐ I am from an NGO/association committed to the cause of women, or a person familiar with issues relating to sexual harassment.

☐ I am independent of the employer and the parties, and will disclose any conflict.

☐ I will maintain strict confidentiality (s.16) and apply natural justice.

TERMS

Term / tenure	
Sitting fee / honorarium	
Coverage (complaints, meetings)	

_____

External Member
Name / Signature / Date

_____

Employer
Name / Signature / Date

The POSH Act requires the Internal Committee to include at least one external member. Equator provides trained external members and IC training.

Wage / Full-and-Final Settlement Agreement

Form F-W11

Settles salary dues and full-and-final amounts, secured by escrow.

Case No.	
Employee	
Employer	

A. DUES

Component (salary, arrears, leave encashment, bonus, gratuity) and amount

Gross dues (₹)	
Deductions / recoveries (₹)	
Net settlement (₹)	

B. TERMS

DECLARATION & UNDERTAKING

☐ The net amount is in full and final settlement of all salary/benefit claims to the date of separation.
☐ The employer will issue the relieving and experience letters and settle PF/gratuity as applicable.
☐ The amount will be routed through escrow and released against relieving and return of assets.

C. MUTUAL RELEASE

Scope of release / carve-outs (e.g., statutory dues preserved)

_____	_____	_____
Employee	**Employer**	**Neutral / Equator**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

Statutory entitlements (e.g., gratuity/PF) cannot be contracted out; a settlement records their proper payment, not their waiver.

Separation / Termination Settlement (Consent / MSA)

Form F-W12

A consent settlement of a termination/separation dispute, enforceable as a decree.

Case No.	
Parties	

A. BACKGROUND

The dispute and how it is resolved

B. AGREED TERMS

e.g., separation date, ex-gratia/compensation, notice-pay treatment, relieving & reference, non-disparagement, confidentiality

C. ENFORCEABILITY

DECLARATION & UNDERTAKING

☐ This is a mediated settlement agreement under the Mediation Act, 2023, enforceable as a decree (s.27).

☐ Each party has had the opportunity to take independent legal advice.

_____ _____ _____

Employee
Name / Signature / Date

Employer
Name / Signature / Date

Neutral / Equator
Name / Signature / Date

Agreement to Mediate & Confidentiality

Form F-W13

The parties' agreement to mediate and to keep the process confidential.

Case No.	
Parties	

DECLARATION & UNDERTAKING

☐ We agree to mediate this dispute in good faith under Equator's Rules.

☐ The process is voluntary, confidential and without prejudice (Mediation Act s.22); nothing said may be used in later proceedings, save the signed settlement and the legal exceptions.

☐ We will attend with authority to settle and treat the neutral as impartial.

_____	_____	_____
Party A	**Party B**	**Neutral**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

Statement of Claim (Employment) — Form F-W14

The claimant's structured statement of the employment claim.

Case No.	
Claimant	
Respondent	

1. PARTIES & EMPLOYMENT

Role, dates, terms

2. FACTS

Chronological facts

3. CLAIM & RELIEF

What is claimed and the relief sought

_____

Claimant / representative
Name / Signature / Date

Grievance Redressal Committee — Referral (IR Code)

Form F-W15

Refers or records a matter before the establishment's Grievance Redressal Committee under the Industrial Relations Code, 2020.

Establishment	
Employee	
Date	

MATTER

The individual grievance referred

GRC COMPOSITION & PROCESS

The Grievance Redressal Committee (with adequate representation of women workers) considers the individual grievance within the statutory timeline; where unresolved, the worker may raise an industrial dispute. Equator can mediate the matter where lawful and both sides agree.

OUTCOME

Decision / referral

_____	_____	_____
GRC / HR	**Employee**	**Equator (if mediating)**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

Escrow Instruction & Release Schedule

Form F-W16

Instructs the escrow agent to hold and release the settlement/F&F sum on milestones.

Case No.	
Escrow bank	
Amount (₹)	

RELEASE MILESTONES

Milestone (e.g., signed settlement / relieving / return of assets) and amount

DECLARATION & UNDERTAKING

☐ Funds are released only against the stated milestones, with a receipt and audit entry for each release.

☐ The final release triggers the relieving/experience letter and confirmation of PF/gratuity settlement.

_____	_____	_____
Employee	**Employer**	**Escrow officer (Equator)**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

Case Closure Report — Form F-W17

Closes the matter and records the outcome.

Case No.	
Date of closure	

Outcome:

☐ Settled (MSA/F&F signed)
☐ POSH: conciliation recorded / inquiry concluded
☐ Not settled — report issued
☐ Referred to statutory forum
☐ Withdrawn

Summary of outcome and any pending steps

DECLARATION & UNDERTAKING

☐ Documents e-signed/e-stamped as applicable; escrow released; relieving issued where relevant.
☐ Confidentiality maintained; audit trail complete.

_____

Case Manager, Equator
Name / Signature / Date

Full & Final Settlement Statement (itemised)

Form F-W18

An itemised computation of the full-and-final amount.

Employee	
Employer	
Last working day	

EARNINGS

Component and amount (salary to date, arrears, leave encashment, bonus, gratuity)

DEDUCTIONS

Component and amount (notice shortfall, advances, asset recovery, statutory)

Gross earnings (₹)	
Total deductions (₹)	
Net payable (₹)	

_____ _____ _____

Prepared by (HR)	Verified by (Employee)	Neutral / Equator
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

Use the F&F / Gratuity / Notice-pay calculators to compute the figures. Statutory dues must be paid, not waived.

Model Employment ADR / Grievance Clause

Form F-W19

For inclusion in employment contracts, HR policies and settlement deeds.

MODEL CLAUSE

"Any dispute arising out of or in connection with this employment — including as to wages, dues, separation, benefits or the interpretation of this contract — shall first be referred to mediation/conciliation administered by Equator Resolution under its Rules. This clause does not apply to a complaint of sexual harassment, which shall be dealt with by the Internal Committee under the POSH Act, 2013; nor does it bar either party from a statutory forum or the police where applicable."

Adapt to the role and settle with counsel. POSH complaints are never diverted from the Internal Committee.

Application for Time Extension

Form F-W20

To extend a mediation timeline by consent.

Case No.	
Current due date	
Extension sought (days)	
Reason	

DECLARATION & UNDERTAKING

☐ Both parties consent to the extension.

☐ The extension is sought in good faith to reach a settlement.

_____	_____	_____
Party A	**Party B**	**Neutral**
Name / Signature / Date	*Name / Signature / Date*	*Name / Signature / Date*

POSH inquiry timelines are statutory (90 days) and are managed by the Internal Committee, not extended by this form.